

		The Case Management Conference is CONTINUED to December 3, 2026, at 9:30 a.m. in Department C12. Defendant shall provide notice.
9.	Seacoast Capital Partners IV L.P. vs. Martin 25-01473117	1. Demurrer to Amended Cross-Complaint 2. Case Management Conference DEMURRER AND CMC CONTINUED TO MAY 29, 2026. See ROA 155
10.	Hogbin vs. Sengstock 25-01457519	1. Motion to Quash Service of Summons 2. Motion to Strike 3. Case Management Conference <u>Motion to Quash Service of Summons and Complaint</u> Defendant Sheila Sengstock’s motion to quash service of summons and complaint is DENIED. (Code Civ. Proc. §418.10.) The relevant period during which “minimum contacts” must have existed is when the alleged cause of action arose, and not when the action was commenced. (See <i>Boaz v. Boyle & Co.</i> (1995) 40 Cal.App.4th 700, 717.) By Defendant’s own admission, there is a sufficient basis for specific personal jurisdiction over her for the claims alleged in this lawsuit. Defendant admits that she had ample contacts with California at the time the alleged causes of action accrued because she admits that she was a resident of California when Plaintiff allegedly loaned her the funds at issue in the First Amended Complaint. Defendant’s motion argues that she has a lack of contact with Orange County, but for purposes of establishing personal jurisdiction, the relevant inquiry is the nonresident defendant’s contacts with the forum <i>state</i>. Since there is no reasonable dispute that Defendant had sufficient contact with the state of California such that exercise of personal jurisdiction over Defendant is reasonable, there is no basis to grant Defendant’s motion. <u>Motion to Change Venue to Superior Court of Riverside County</u> In the alternative, Defendant moves to challenge Plaintiff’s designation of Orange County Superior Court as venue for this action. Code Civ. Proc. §395, subd. (a) governs venue and provides in relevant part: “), “the superior court where the defendants or some of

them reside at the commencement of the action is the proper court for the trial of the action ... If none of the defendants reside in the state or if they reside in the state and the county where they reside is unknown to the plaintiff, the action may be tried in the superior court in any county that the plaintiff may designate in his or her complaint, and, if the defendant is about to depart from the state, the action may be tried in the superior court in any county where either of the parties reside or service is made.” (Code Civ. Proc. §395, subd. (a).)

Here, Defendant has submitted evidence in support of her motion that shows that she was a resident of Colorado at the commencement of this action. (See ROA 36, “Exhibit A” [Colorado Driver’s License for Defendant issued on 9/9/24; Utility Bill for Colorado Address in Defendant’s name, dated 6/28/24; Turn-off Request for Utility bill in Riverside County dated 6/18/24.].) Accordingly, venue is proper “in any county that the plaintiff may designate in his or her complaint.”

Motion to Strike Portions of First Amended Complaint

Defendant’s motion to strike portions of the First Amended Complaint is DENIED. (Code Civ. Proc. §§435, 435.5, 436; Cal. Rules of Court, Rule 3.1322, subd. (a).) As an initial matter, Defendant has failed to comply with the meet and confer requirement set forth in Code Civ. Proc. §435.5. Defendant’s counsel has failed to submit a declaration asserting that the parties met and conferred in person, by telephone or by video conference at least 5 days prior to the date the Motion to Strike was due to be filed.

Even if this defect is overlooked, the Motion to Strike is procedurally defective and substantively meritless. Cal. Rules of Court, Rule 3.1322, subd. (a) provides “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” Here, the notice of motion lists general categories of allegations that Defendant seeks to strike. This does not comply with the procedural requirements for a motion to strike.

Even if the Court does consider the merits of Defendant’s motion, there is no basis to strike any portion of the First Amended Complaint.

Venue/jurisdiction allegations – The issue of venue and jurisdiction is addressed in Defendant’s motion to quash. As discussed above, the Court finds Defendant’s arguments regarding venue and jurisdiction to be meritless. The Court declines to consider Defendant’s declaration averring that she was formerly a resident of Riverside County rather

		than Orange County. Such material are not appropriate for consideration in assessing a challenge to the pleadings. <u>Alter Ego allegations</u> – Defendant moves to strike what she describes as “conclusory” allegations of alter ego liability. The FAC contains sufficiently pleaded allegations of alter ego liability for purposes of a challenge to the pleadings. (See, e.g., <i>Rutherford Holdings, LLC v. Plaza Del Rey</i> (2014) 223 Cal.App.4th 221, 235-236 [“Defendants argue that Rutherford failed to allege specific facts to support an alter ego theory, but Rutherford was required to allege only ‘ultimate rather than evidentiary facts.’”].) Accordingly, the FAC sufficiently alleges the ultimate facts sufficient to plead alter ego liability. The motion is DENIED as to alter ego allegations. <u>Punitive Damages and Emotional Distress Allegations/Prayer</u> – Defendant argues that facts warranting imposition of punitive damages have not been adequately alleged. The FAC sufficiently alleges causes of action for false promises and fraud, which are sufficient predicate causes of action for imposition of punitive damages and emotional distress damages. No demurrer has been filed challenging the sufficiency of the fraud causes of action. Accordingly, the motion is DENIED as to punitive damages and emotional distress damages allegations. <u>Duplicative/Irrelevant Allegations</u> – The motion is DENIED as to any purportedly duplicative and conclusory allegations. As an initial matter, it is impossible to ascertain what material Defendant seeks to strike from the FAC based upon the notice of motion. Moreover, the motion is essentially an improper attempt to use Code Civ. Proc. §436 as a “line-item veto”. (See <i>PH II, Inc. v. Superior Court</i> (1995) 33 Cal.App.4th 1680, 1683.) Defendant shall file an Answer to the First Amended Complaint within 30 days of notice of this ruling. The Case Management Conference is CONTINUED to August 20, 2026, at 9:30 a.m. in Department C12. Plaintiff shall provide notice.
11.	Stewart Title Guaranty Company vs. Wilbourn 25-01516717	1. Demurrer to Complaint (x3) 2. Motion to Strike Portions of Complaint (x3) 3. Case Management Conference OFF CALENDAR. CASE IS STAYED. See ROA 133